

24STCV33648 24STCV33648

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Case Number: 24STCV33648 Hearing Date: July 27, 2026 Dept: 400

MOTION TO COMPEL

The Court

tenders the following tentative decision in the matter Ramon Rincon v.

General Motors, LLC, Los Angeles County Superior Court case number 24STCV33648, set for hearing on July 27, 2026. Ramon Rincon (Plaintiff) moves for an order compelling General Motors, LLC (Defendant) to produce its person most knowledgeable (PMK) for deposition and produce the records identified in the deposition notice. Defendant opposes the motion. Plaintiff's motion is denied.

A.

Legal Standard

An oral

deposition must be scheduled for at least 10 days after the service of the deposition notice. (Id., § 2025.270, subd. (a).) "If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document . . . described in the deposition notice." (Id., 2025.450, subd. (a).) The motion shall be accompanied by a meet and confer declaration or declaration stating that the petitioner has contacted the deponent to inquire about their nonappearance. (Id., § 2025.450, subd. (b)(2).)

B. Discussion

Plaintiff initially served a notice of deposition on Defendant's PMK along with a request for production on March 7, 2025, setting a deposition date of March 19 and providing an invitation to accommodate Defendant regarding the deposition date. (Barry Decl. ¶ 4.) On March 12, Defendant served objections to the deposition notice. (Id. ¶ 6.) Throughout April and May 2025, the parties met and conferred regarding Defendant's objections but failed to secure a different date for deposition. (Id. ¶¶ 7–11.)

A motion to compel deposition pursuant to section 2025.450 "shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) A meet and confer declaration "shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Id., § 2016.040.) Here, Plaintiff has not demonstrated sufficient meet and confer efforts. The last communication cited between the parties was from over a year ago in May 2025 and did not mention the possibility of a motion to compel being filed. The Court does not find that over a year of silence between the parties constitutes a good faith attempt at informal resolution. Thus, Plaintiff's motion is improper. Accordingly, the motion is denied.

C. Conclusion

The Court denies Plaintiff's motion.